

Law & Motion

2. 9:00 AM CASE NUMBER: C22-02585
CASE NAME: ERIC RHEINHEIMER VS. SHANNA FARRELL
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: PAYMON HIFAI, ESQ.**
FILED BY: FARRELL, SHANNA
TENTATIVE RULING:

Clifford R. Horner, Paymon Hifai and Horner Law Group, P.C. (“Counsel”) filed a Motion to be Relieved as Counsel on April 13, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on August 31, 2026. That motion was advanced for hearing to June 15, 2026 by the Court’s Order issued May 26, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant and cross-complainant Shanna M. Farrell (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed April 13, 2026, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13 and Notice filed May 29, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Before the Court is a motion to quash service of the summons and complaint and to set aside default and default judgment filed by defendant Michelle Tiernan. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiffs Leslee Markham and Darrell Markham filed their complaint against defendant Michelle Tiernan on June 5, 2023. The complaint alleges Plaintiffs entered into a contract for the purchase and sale of real estate with Ms. Tiernan which Ms. Tiernan failed and refused to perform. Plaintiffs also allege Ms. Tiernan made misrepresentations regarding her financial ability to perform the contract and her intent to perform under the purchase agreement.

Plaintiffs contend they personally served Ms. Tiernan with the summons and complaint at 7:04 p.m. on Sunday, September 24, 2023 at 1117 Alder Creek Way in Brentwood, as reflected in the proof of service filed with the Court on October 10, 2023. (*See also* Pastor Decl. ISO Mtn. to Quash Exh. 1.) The proof of service identifies Michelle Tiernan as the party served, and the box checked in the proof of service shows it was served by "personal service." (POS Box 3.a and Box 5.a.) The proof of service is executed by Parrish Scott who identifies himself as a registered process server. (POS p. 2.)

Ms. Tiernan did not respond to the complaint. A request for entry of default was served on her by mail at the Alder Creek address. (*See also* Pastor Decl. ISO Mtn. Exh. 2.) Her default was entered by the Court on October 25, 2023. Thereafter, Plaintiffs requested and obtained a default judgment against Ms. Tiernan on June 24, 2024. (*See also* Pastor Decl. ISO Mtn. Exh. 4.) A notice of entry of the judgment was filed on September 24, 2024 showing the notice was served by mail on Ms. Tiernan at the Alder Creek address on September 20, 2024. (Not. Entry of Judg. filed 9/24/2024.)

On December 20, 2024, Ms. Tiernan, through her then-counsel Nathan Pastor, filed a notice of motion and motion to set aside the default and default judgment under Code of Civil Procedure section 473(b) ("Section 473(b) Motion"), without any supporting documents such as a memorandum of points and authorities or declarations. On February 21, 2025, Ms. Tiernan filed a memorandum of points and authorities and a declaration by Ms. Tiernan. The Section 473(b) Motion was made on the ground the default and default judgment were entered based on defendant's mistake, inadvertence, surprise, or excusable neglect in failing to timely respond to the complaint. The Court heard the Section 473(b) Motion on March 24, 2025 and took the matter under submission after oral argument. The Court subsequently issued an order after hearing on April 21, 2025, denying the motion without prejudice to her filing a motion for relief under Code of Civil Procedure sections 473(d) and/or 473.5.

On June 25, 2025, Ms. Tiernan filed her current motion styled as a motion to quash service of summons and to set aside the default and default judgment. The notice of motion and motion state Ms. Tiernan seeks relief under Code of Civil Procedure sections 418.10(a) and 473.5, as well as under Code of Civil Procedure section 473(b).

The parties stipulated to continue the hearing from its original date in November 2025 to the current date. (Stip. filed 11/10/2025; Stip. filed 1/8/2026.) The parties' latest stipulation asked the Court to continue the hearing to at least 45 days after the hearing on a motion for protective order filed by Ms. Tiernan, in which she asked the Court to prohibit plaintiffs' intended deposition of a third party witness Melissa Case. (Stip. filed 1/8/2026.)

The motion for protective order was set for hearing on April 27, 2026. Five days before that, a substitution of counsel was filed, substituting counsel Pastor out of the case and making Ms. Tiernan in pro per. (Subs. of Counsel filed 4/22/2026.) The Court denied Ms. Tiernan's motion for protective order. (OAH filed 4/28/2026.)

Legal Standards Governing the Motion

Code of Civil Procedure section 418.10(a) states in relevant part, "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." Code of Civil Procedure section 473.5 in effect until January 1, 2027 applies "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action." (Code Civ. Proc. § 473.5(a).) The motion for relief under that statute "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(b).) The Court may set aside the default and default judgment "[u]pon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(c).)

The motion also seeks relief under Code of Civil Procedure section 473(b) based on inadvertence, mistake, or excusable neglect resulting in the entry of the default and default judgment. The notice of motion and motion and the table of authorities do not cite Code of Civil Procedure section 473(d). The last brief substantive section of the memorandum of points and authorities, however, argues that the default judgment is void and can be set aside under Code of Civil Procedure section 473(d) for lack of personal jurisdiction, because service of the summons was invalid. (Code Civ. Proc. § 473(d) ["The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."].) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation omitted.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation omitted.]" (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.)

Analysis

A. Relief Under Code of Civil Procedure Section 473(b)

To the extent the motion seeks relief under Code of Civil Procedure section 473(b) based on defendant's excusable neglect or other grounds under that statute, the motion is denied for several reasons. First, defendant previously moved for relief from the default and default judgment under Code of Civil Procedure section 473(b), that motion was heard on March 24, 2025, and the Court denied Ms. Tiernan's Section 473(b) motion in its order after hearing issued April 21, 2025. To the extent this motion renews the Section 473(b) Motion, it is an improper motion for reconsideration not made in compliance with Code of Civil Procedure section 1008, including with the required showing of new evidence previously unavailable, new law, or any other basis for the Court to reconsider the prior ruling. (4/21/2025 Order.)

Second, under the authority cited in the Court's April 21, 2025 Order, the motion for relief under Code of Civil Procedure section 473(b) is untimely under the statute. Code of Civil Procedure section

473(b), effective until January 1, 2027, provides in pertinent part, "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Emphasis added.) The Court lacks jurisdiction to grant relief. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273 [holding relief under Code of Civil Procedure section 473(b) could not be granted where motion for relief from default and default judgment was filed more than six months after entry of defendant's default].) (*See also Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340-342 [six-month deadline of Code of Civil Procedure section 473(b) is jurisdictional; the Court has no jurisdiction to set aside a default if the motion for discretionary relief under Code of Civil Procedure section 473(b) is filed and served after the six-month deadline].)

B. Relief under Code of Civil Procedure Section 473.5 and Motion to Quash

Ms. Tiernan contests service and the Court's jurisdiction over her as a result. In seeking relief under Code of Civil Procedure section 473.5 she also contends she did not have actual notice of the lawsuit in time to defend the action. "When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has 'the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.' [Citation omitted.]" (*American Express Centurion Bank v. Zara* (2011) 199 Cal. App. 4th 383, 387.) For the reasons explained below, Plaintiffs have met their burden of proof to show there was personal service of the summons and complaint on Ms. Tiernan, and Ms. Tiernan's declaration is insufficient to show she did not receive actual notice of the lawsuit based on personal service of the summons and complaint, and that any lack of actual notice is not the result of inexcusable neglect or avoidance of service.

Evidence Code section 647 provides, "The return of a process server registered pursuant to Chapter 16 of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." The filed Proof of Service of Summons signed by Parrish Scott, a registered process server, meets the presumption which shifts the burden of producing evidence to Ms. Tiernan.

1. The POS and InfoTrack Email

Ms. Tiernan's reply filed by counsel prior to his substitution out of the case characterizes "a September 24, 2023 email from InfoTrack to Plaintiffs' Counsel on September 24, 2023 with the subject line 'Successful process serving for Michelle Tiernan, an individual' " as the " 'Process Server Affidavit,'" referring to Exhibit I to the Beuslink Declaration filed in opposition to Ms. Tiernan's first unsuccessful motion to set aside the default and default judgment under Code of Civil Procedure section 473(b). (Reply ¶¶ 4, 5 filed 1/5/2026, referring to Pastor Decl. Exh. 6 [Beuslink Decl. Exh. I].) This identification misstates the document, Exhibit I (the "InfoTrack Email"), which the Reply acknowledges was merely an unsigned form email from "InfoTrack" reporting completion of service. It is not an affidavit.

Ms. Tiernan argues that the reference in the InfoTrack email to "substitute" service rather than personal service undermines the process server's actual Proof of Service under penalty of perjury attesting to Ms. Tiernan's personal service. (Pastor Decl. Exh. 6 [Beuslink Decl. Exh. I].) The Court

disagrees. The Proof of Service is signed by the process server under oath and describes the timing, manner and location of service specifically. The InfoTrack Email includes other information consistent with the process server's personal service of Ms. Tiernan in the "description" section, particularly when considered with other evidence.

The "description" of service in the InfoTrack email includes the following statement: "Sister gave description about height, and that she had long curly hair person. Answer the door fit that description female said I had the wrong address and walked away from the window would not provide any more information, announce service and dropped at the door." (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. I].) This was not the only information the process server who actually served Ms. Tiernan (Parrish Scott) had regarding Ms. Tiernan's physical appearance. The evidence shows when he tried to serve Ms. Tiernan at a former address on Marsh Court on September 15, 2023, the occupant told him Ms. Tiernan lived there two years ago and provided a physical description of Ms. Tiernan as a 55 year old Caucasian female weighing approximately 150 pounds. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. G, Non-Service Report].) When he tried to serve her at her sister's home on Weeping Willow Court, the sister provided the physical description including long curly hair, though the sister indicated she had not seen Ms. Tiernan in 10 years, but the sister also indicated the best way to find Ms. Tiernan was at her ex-husband's house based on the joint custody arrangement and Ms. Tiernan having the kids every other weekend. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. H, Non-Service Report].) Notably, Ms. Tiernan in her declaration does not deny that she matches the physical description available to the process server at the time of service; i.e., a Caucasian woman with long curly hair, approximately 55 years old, 150 pounds. (Compare to American Express Centurion Bank, supra, 199 Cal.App.4th at 387-388 [defendant affidavit explaining in detail why he did not fit the process server's description of the person served].)

The process server's declaration of service signed under penalty of perjury shows "personal" service. (Proof of Service of Summons filed 10/10/2023.) That Exhibit I refers to "substitute service" does not mean that substitute service is the manner in which service was actually effectuated. Rather, the general characterization as "substitute service" conflicts with the more specific and detailed text describing how service was effectuated, a description consistent with personal service and was in a form unsigned email. The Court accepts the more specific description of the service in Exhibit I and the sworn statement of the process server that he personally served Ms. Tiernan.

Ms. Tiernan argues in her reply that the Proof of Service of Summons filed on October 10, 2023 does not comply with Code of Civil Procedure section 417.10. That statute, operative until January 1, 2027, requires only that for service by personal service under Code of Civil Procedure section 415.10, the proof of service consist of an "affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered" (Code Civ. Proc. § 417.10(a) [emphasis added]; Code Civ. Proc. § 415.10 ["A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served."].) The Proof of Service of Summons shows Michelle Tiernan was served by personal service at 7:04 p.m. on Sunday, September 24, 2023 at the Alder Creek address. The email, Exhibit I, shows the summons and complaint were delivered to Michelle

Tiernan as the person matching the physical description given by her sister, including long curly hair. Ms. Tiernan has not shown how the Proof of Service of Summons filed October 10, 2023 does not comply with Code of Civil Procedure sections 415.10 and 417.10(a), as that statute was in effect in September 2023 when service was effectuated. The Tiernan Reply incorrectly cites provisions of a new version of Code of Civil Procedure section 417.10 that does not become effective until January 1, 2027. (Reply ¶ 13, pp. 5-6.)

2. Ms. Tiernan's Evidence Contesting Service and Notice and Contrary Evidence

Ms. Tiernan has produced evidence attempting to contest the facts stated in the Proof of Service of Summons. The motion is supported by a declaration by Michelle Tiernan filed June 25, 2025. She declares that she has been "homeless" since some time in 2020. (Tiernan Decl. ¶ 2.) She declares she last "lived" at the Alder Creek address in 2017, but that her ex-husband and children live at that address. (Tiernan Decl. ¶ 3.) She does not explicitly deny that she was served at the Alder Creek address or that she received the summons and complaint. Instead, she states: "I do not recall being personally served at 1117 Alder Creek at any time since the commencement of this action and I do not understand how I could be served at this address, as I do not live there." (Tiernan Decl. ¶ 4.)

The fact she does not live at the Alder Creek address does not mean that she could not be served there by personal service. Personal service under Code of Civil Procedure section 415.10 requires only "personal delivery" of the summons and complaint to the defendant, not delivery at any particular location. (Code Civ. Proc. § 415.10.) She does not claim that she has not visited the Alder Creek address since she stopped living there, or that she did not visit that address in September 2023, or that she was not at that address at around 7 p.m. on Sunday, September 24, 2023.

Ms. Tiernan also states, "In or about October 2024, I was informed by Counsel that a default had been obtained in an action against me. This was also when I first understood that I had been sued in this matter." (Tiernan Decl. ¶ 1.) The second sentence is the closest Ms. Tiernan's declaration comes to stating that she did not have actual notice of the lawsuit in time to defend it. Neither Ms. Tiernan's declaration nor Pastor's declaration explain how or why Ms. Tiernan's attorney learned a default was entered against Ms. Tiernan in October 2024 when the attorney informed her of the default, since her counsel Pastor was not served with the notice of entry of the default judgment; instead, it was served on Ms. Tiernan at the Alder Creek address. (See Notice of Entry of Judgment p. 2 filed 9/24/2024.) Pastor denied he would be representing Ms. Tiernan in the dispute with the Markhams in his November 2022 email communications with Plaintiffs' counsel Beuselink before suit commenced. (Pastor Decl. ISO Mtn. to Quash Exh. 6 [Beuselink Decl. Exh. A].)

Tunis v. Barrow (1986) 184 Cal.App.3d 1069 cited by Ms. Tiernan is distinguishable. Plaintiffs are not relying on any notice or knowledge of the lawsuit by Ms. Tiernan's counsel to demonstrate she had actual notice of the lawsuit; the defendant in that case was served by publication, not by personal service. The evidence in that case was essentially uncontested that the defendant had counsel who was engaged in discussions with the plaintiff's counsel regarding the merits of the dispute. Though defendant's counsel knew about the lawsuit, he never informed the defendant about the case and instead actively concealed it from defendant. (*Id.* at 1074, 1077-1079.) The Court held defendant had proven grounds for relief under Code of Civil Procedure section 473.5. The defendant demonstrated that he had no actual notice of the lawsuit and that his ignorance was not the result of avoidance of

service or inexcusable neglect, because the Court held the defendant's attorney's knowledge of the suit should not be imputed to the defendant under those circumstances. (*Id.* at 1078-1079.)

Other evidence supports that Ms. Tiernan was the person personally served with the summons and complaint on October 10, 2023 at 7:04 p.m. on a Sunday night. The Motion includes a copy of an agreement for joint physical custody of the children by Ms. Tiernan and her ex-husband. (Pastor Decl. Exh. 4 [Marital Stlmt. Agmt. Section 2] and Exh. 5 [Request for Change of Custody, ¶ 2.b., asking for change in visitation arrangements to "Father's return home from work on Friday until Sunday evening at 7 00 pm on alternate weekends + mid-week dinner visits for Father and the children or. his weekdays when he is not working,"], and ¶ 2.d.(2), describing the then-current arrangements as "Joint physical custody week-on/week-off schedule"], and attachment to request stating she is seeking a "modification of the parenting plan that includes Father being with the children on alternate weekends from Friday after school until Sunday at 7:00 pm plus mid-week visits and on the days he is off of work.") The revised visitation Ms. Tiernan requested is consistent with service of her at the Alder Creek address at 7:04 p.m. on a Sunday night.

Beuselink sent a pre-litigation demand letter to Ms. Tiernan at the email address she was using to communicate with the real estate agent Melissa Case who was acting as dual agent in the transaction in the sale that is the subject of this action. (L. Markham Opp. Decl. ¶¶ 2-5 filed 12/29/2025; Pastor Decl. Exh. 6 [Beuselink Decl. ¶ 3 and Exhs. B and C.] Ms. Tiernan again does not deny that she received the email notice from Beuselink with the demand and notifying her of the Markhams' intent to sue her if she did not agree to participate in mediation. Rather, Ms. Tiernan states without any time frame only, "I have also lost access to prior email addresses that I had, as well as prior phone numbers." (Tiernan Decl. ¶ 6.) She does not state when she purportedly "lost access" to her prior email addresses, and it seems beyond credibility that she did not have access to her email on November 21, 2022, when she had used that email address to communicate with Melissa Case, dual agent for the sellers and buyer, only a short time before on November 9, 2022 when she told Case she was getting money from her brother to make the initial deposit required for the sale. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. C].)

Copies of the request for entry of her default and a notice of entry of the judgment were mailed to Ms. Tiernan at the Alder Creek address. (10/25/2023 Req. for Def. p. 2; 9/24/2024 Not. of Entry of Judgment p. 2.) A copy of the motion for an assignment order was also served on Ms. Tiernan at the Alder Creek address. (*See* Mtn. to Quash p. 4, ¶ 27.) Ms. Tiernan does not address those mailings in her declaration, none of which look like a letter, scam or otherwise. She does not deny that she received copies of either the request for entry of default or the notice of entry of the judgment; she declares only that her son told her about a letter telling her she was being sued which she assumed was a scam and had him throw away, and that she "first understood" she was being sued in this case in October 2024 when her counsel Pastor told her. (Tiernan Decl. ¶¶ 1, 7.)

Ms. Tiernan implicitly admits in her declaration that mail directed to her was received at that address, and indeed that her son opened mail for her that asserted she was being sued. She claims she was receiving "scam" mail because of her bad credit. (Tiernan Decl. ¶ 7.) Bad credit typically is associated with late-paid or unpaid debts such that it is not clear why she would conclude a letter stating she

was being sued was a "scam" rather than being a genuine debt collection letter.

C. Other Issues Raised by the Parties

In an additional opposition filed by Plaintiffs on June 2, 2026 prior to the current hearing, Plaintiffs also argue that Ms. Tiernan has now made a general appearance in the action by making a motion for protective order to try to prevent Plaintiffs from taking the deposition of Michelle Case. Ms. Tiernan filed her motion for protective order on December 9, 2025. The fact she filed the protective order motion, even if it constitutes a general appearance, is not relevant to the determination of the motion as she did not make a general appearance in the action before her default and default judgment were entered.

In their opposition filed December 29, 2025, Plaintiffs also argue the motion for relief under Code of Civil Procedure section 473.5 is untimely. In *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, the California Supreme Court held that the two-year time limitation under Code of Civil Procedure section 473.5 does not apply to a motion for relief from a default judgment that is void for lack of notice. (*Id.* at 226.) Though the motion is admittedly less clear, the Court interprets Ms. Tiernan as arguing she was not in fact served with the summons and complaint despite the Proof of Service of Summons stating to the contrary, such that if the summons and complaint were not actually served on her, the Court would not have acquired personal jurisdiction over her and the default and default judgment would be void, in contrast to, for example, a valid judgment based on service by publication or service by subservice which a party contests based on lack of actual notice of the lawsuit. (*Id.* at 223.) Under a theory the default and default judgment are void for lack of service, the motion is timely. The Court has found, however, after weighing all the evidence including the Tiernan Declaration, the Proof of Service of Summons by the process server, and other evidence and circumstances before the Court, that Ms. Tiernan has not proven she was not served by personal service with the summons and complaint on September 24, 2023.

Conclusion and Ruling

The motion for relief under Code of Civil Procedure section 473(b) is **DENIED** as legally and procedurally improper for the reasons stated above.

Weighing the evidence before the Court, the Court finds Plaintiffs have demonstrated Ms. Tiernan was personally served with the summons and complaint as stated under oath by the process server who performed the service and based on other evidence consistent with such service. The process server's proof of service under penalty of perjury is corroborated by other evidence suggesting a likelihood Ms. Tiernan was present at the Alder Creek address at about 7 p.m. pursuant to her child custody arrangements with her ex-husband, and the physical description of Ms. Tiernan available to the process server from prior service attempts a portion of which is included in the InfoTrack email and which description Ms. Tiernan does not contest was accurate.

Ms. Tiernan has not shown the facts stated in the (real) affidavit of service were untrue, that she did not have actual notice of the lawsuit in time to defend the action, and that any lack of actual notice was not the result of her inexcusable neglect or avoidance of service to obtain relief under Code of Civil Procedure section 473.5. She has not shown that the summons should be quashed for lack of

proper service by personal service, or that the affidavit of service fails to comply with Code of Civil Procedure sections 415.10 and 417.10, and that the default and default judgment are void for lack of personal jurisdiction over her. The motion to quash the summons and to set aside the default and default judgment under Code of Civil Procedure sections 418.10 and 473.5 is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The motion is **continued** to June 29, 2026 at 9:00 a.m. in Department 34 by stipulation of the parties.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)'s Motion to Set Aside Entry of Default ("Motion").

Defendant's Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff's Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.

Timing

First, Defendant notes that the Proof of Service attached to the 4AC indicates that it was served on October 20, 2025, the day *before* it was signed and dated by Plaintiff and filed with the Court. Defendant contends Plaintiff could not have served the 4AC on them before it was signed and/or filed with the Court – indicating that the Proof of Service is unreliable.